DONALD TRUMP

Judge orders Trump to sit for deposition in his $10 billion lawsuit against the BBC

The president had agreed to sit for a deposition on Oct. 16, but it was canceled for what was described as a "matter of national importance."

Listen to this article with a free profile

00:00 00:00 1x



Get more news LIVE on NBC NEWS NOW

Oct. 22, 2026, 11:53 AM EDT / Updated Oct. 22, 2026, 2:02 PM EDT

By Dareh Gregorian and Erika Angulo

A federal judge in Florida on Thursday ordered President Donald Trump to sit for a deposition in his defamation lawsuit against the BBC by Dec. 11 or face the possibility of having his $10 billion action dismissed.

U.S. Magistrate Judge Enjoliqué Lett handed down the order after the BBC's lawyers complained that Trump was stalling. He was supposed to sit for a deposition on Oct. 16 but canceled it for a "matter of national importance."

BBC attorney Charles Tobin told the judge that matter turned out to be a political rally and a fundraiser.

"He was participating in party politics and prioritized that over sitting for the deposition," Tobin said.

Trump's attorneys had proposed postponing his deposition until late January, which Tobin said was too late. Discovery in the case is supposed to close on Dec. 18, and Trump is the single most important witness in the case since he's the one who claims he suffered billions of dollars in damages from the BBC's 2024 story, Tobin said.

Lett also ruled that the deposition can be videotaped –something Trump attorney Alejandro Brito argued against. The judge agreed with Brito that the deposition date could be pushed back if the district judge overseeing the case extends the deadline for discovery, but only that judge, Jeffrey Kuntz, has the power to do that.



Trump is suing the BBC over a documentary that spliced together comments in his speech at the Ellipse on Jan. 6, 2021.

Saul Loeb / AFP via Getty

The BBC declined comment.

Asked about the deposition date, a spokesman for Trump's personal legal team said in a statement that "President Trump's powerhouse lawsuit is holding the BBC accountable for its defamation and reckless election interference just as he has held other fake news mainstream media responsible for their wrongdoing."

For Subscribers



OpenAI agents are shutting off ways to monitor misbehavior



Republicans seek inroads with Black voters in Michigan's tight Senate race



Europe's protests are
than schools. They are a g
roar.

Trump filed suit against the British news organization last year, alleging it aired a "false, defamatory, deceptive, disparaging, inflammatory, and malicious depiction" of him in a documentary that spliced together comments from his speech at the Ellipse ahead of the Capitol riot on Jan. 6, 2021.

The BBC has acknowledged splicing comments from the speech together, but maintains Trump was not defamed and that he did not suffer any damages. While Trump has complained the documentary aired in the days before the 2024 election, the BBC said it never aired the special in the U.S.

The BBC issued a subpoena to Trump's Mar-a-Lago club for information on whether membership applications and fees were affected by its documentary, which did not air in the U.S.

Brito had argued that subpoena should be quashed because Trump is not arguing the show impacted the business.

Tobin countered that Trump's suit says the documentary "injured President Trump in his profession, occupation and trade," so that information should be fair game. Lett agreed that it "falls within" the kind of information that should be turned over.



Dareh Gregorian

Dareh Gregorian is a politics reporter for NBC News.



Erika Angulo

Erika Angulo is a senior coordinating producer for NBC News.

Daniel Arkin and The Associated Press contributed.
